

# Manual of Employees' Benefits And Personnel Policies

EMVIA Inc.

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## Legal Disclaimer:

The materials presented here-is not a contract of employment and is not intended to create, nor should it be construed to create, any contractual rights, either express or implied EMVIA or its employees.

These are for general reference only.

Federal, state or local laws or individual circumstances may require amendments of individual policies and/or the entire Handbook to meet specific situations. Some government forms may be presented in altered size, font or format and may not, therefore, meet federal or state requirements. These materials are intended to be used only as guides and should not be used, adopted or modified without the advice of competent legal counsel.

These materials are presented, therefore, with the understanding that we are not engaged in rendering legal, accounting, or other professional service. If legal advice or other expert assistance is required, the services of a competent professional should be sought.

## Receipt of Company Employee Handbook

The employee Handbook (sometimes called a Personnel Policy Manual, and referred to as the ("Manual")) is a compilation of personnel policies, practices and procedures currently in effect at EMVIA, Inc ("EMVIA").

This Manual is designed to introduce employees to the organization, familiarize you with company policies as they pertain to you as an employee, provide general guidelines on work rules, disciplinary procedures and other issues related to your employment, and to help answer many of the questions that may arise in connection with your employment.

This manual is not a contract. Only the CEO or other authorized representative(s) of EMVIA has the authority to enter into an agreement guaranteeing employment for a specific term. This Manual is intended solely to describe the present policies and working conditions at EMVIA. This Manual does not purport to include every conceivable situation; it is merely meant as a guideline, and unless laws prescribe otherwise, common sense shall prevail. Of course, Federal, state, and/or local laws will take precedent over policies, where applicable.

Personnel Policies are applied at the discretion of EMVIA reserves the right to change, withdraw, apply, or amend any of our policies or benefits, including those covered in this Manual, at any time. EMVIA may notify you of such changes via email, posting on the company's Intranet, Portal or Web site, or via a printed memo, notice, amendment to or reprinting of this Manual, but may, in its discretion make such changes at any time, with or without notice.

By signing below, you acknowledge that you have received a copy of EMVIA's Employee Handbook, and understand that it is your responsibility to read and comply with the policies contained therein and any revisions made to it. Furthermore, you acknowledge that this Manual is neither a contract of employment nor a legal document.

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Signature

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Date

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Please print your full name

Please sign and date one copy of this notice and return it to Human Resources. Retain a second copy for your reference.

## Welcome and Purpose

This manual is designed to acquaint you with EMVIA and provide you with information about working conditions, benefits, and policies affecting your employment.

The information contained in this manual applies to all employees of EMVIA. Following the policies described in this manual is considered a condition of continuous employment. However, nothing in this manual alters an employee's status. The contents of this manual shall not constitute nor be construed as a promise of my employment or as a contract between the company and any of its employees. The manual is a summary of our policies, which are presented here only as a matter of information.

You are responsible for reading, understanding, and complying with the provision of this manual. Our objective is to provide you with a work environment that is constructive to both personal and professional growth.

## Employment Policies: Equal Employment Opportunity Policy

It has been and continues to be EMVIA to treat all employees in a non discriminatory manner. EMVIA will not discriminate in hiring, firing, promotions, salary or any other condition of employment or career development on the basis of sex (including pregnancy), age, color, race, religion, disability, citizenship, national origin or ancestry or any other protected class. EMVIA is an Equal Opportunity Employer.

In accordance with federal and state laws, a qualified individual with a known disability may be entitling to reasonable accommodation. Please contact HR manager for more information.

## Employment Policies I-9 Immigration Reform Policy

EMVIA complies with the Immigration Reform and Control Act of 1986 by employing only United States citizens and non-citizens who are authorized to work in the United States. All employees are asked on their first day of employment to provide original documents verifying the right to work in the United States and to sign a verification form required by federal law (INS Form I-9). If an individual cannot verify his/her right to work within three days of hire, EMVIA must terminate his/her employment.

## Employment Policies Employment Termination

1. EMVIA and its employees share a working relationship defined as employment-at-will. Simply stated, employment-at-will means that in the absence of a specific written agreement, you are free to resign at any time, and EMVIA reserves the right to terminate your employment for any reason (which does not violate any applicable law) with or without prior notice.

2. Termination of employment is an inevitable part of personnel activity within any organization, and many of the reasons for termination are routine. Below are a few examples of some of the most common circumstances under which employment is terminated:

- Resignation - voluntary employment termination initiated by an employee.
- Termination - involuntary employment termination initiated by EMVIA.

- Layoff - involuntary employment termination initiated by EMVIA for non-disciplinary reasons.
- 3. If you wish to resign, you are requested to notify your manager of your anticipated departure date at least two weeks (10 working days) in advance, of course, as much notice as possible is appreciated by and your co-workers. This notice should be in the form of a written statement.
- 4. In the case of termination due to resignation, retirement, or permanent reduction in the work force, your accrued vacation pay will be paid on a pro-rata basis.
- 5. Unused personal time is not paid upon termination. In the case of termination, any vacation or personal/sick time used in excess of accrued time will be deducted from your final paycheck.
- 6. Furthermore, any outstanding financial obligations owed to will also be deducted from the employee's final check.
- 7. A meeting between you and your immediate manager will take place prior to your last day of work. A health insurance extension of benefits under COBRA regulations is available and is offered via mail to eligible employees. Parking cards, office keys, company equipment, and building passes must be returned at this time.
- 8. If you leave EMVIA in good standing, you may be considered for re-employment.

## Workplace Conduct Disciplinary Action Policy

EMVIA reserves the right to terminate an employee at any time for any reason with or without prior disciplinary counseling or notice. Nothing in this handbook or any EMVIA other document is intended to:

- Modify this "at-will" employment,
- Promise progressive discipline or disciplinary counseling,
- Promise notice in circumstances where EMVIA considers immediate termination or discipline to be appropriate.

In to discretion EMVIA may elect to use disciplinary actions. If EMVIA chooses to use progressive discipline, the following steps may be used, though any or all of the steps may be skipped, and discipline may start at any point in the process. Prior warning is not a requirement for termination. If you're disciplined in writing, copies of your warnings are place in your personnel file.

1. Verbal warning
2. Written warning
3. Final Warning (Suspension)
4. Discharge

EMVIA reserves the right to take any disciplinary action it considers appropriate, including termination, at any time. In addition to those situations discussed elsewhere in this handbook, listed below are some other examples where immediate termination could result. This list is general in nature and is not intended to be all-inclusive:

- Discourtesy to a customer, provider, or the general public resulting in a complaint or loss of good will.
- Refusal or failure to follow directives from a supervisor, manager, or EMVIA's officer (Insubordination).
- Breach of confidentiality relating to employer, employee, and customer, or provider information.
- Altering, damaging, or destroying company property or records, or another employee's property.
- Dishonesty or theft.
- Providing false or misleading information to any EMVIA's representative or on any EMVIA records, including the employment application, benefit forms, time cards, expense reimbursement forms, etc.
- Fighting or engaging in disorderly conduct on EMVIA's or customer's premises.
- Violations of any of employment policies including, but not limited to, confidentiality, security, solicitation, insider trading, conflict of interest, and code of conduct.
- Conduct or performance issues of a serious nature.
- Neglect of duty or disregard for established office policies or procedures.
- Possession or working under the influence of illegal drugs or alcohol.
- Performance of any acts while off duty that would reflect unfavorably upon EMVIA or that would discredit EMVIA .
- Excessive absences or tardiness
- Falsification of time, employment and / or personnel records.

EMVIA recognizes that personal issues can sometimes affect your performance. The Employee Assistance Program (EAP) is available to employees and their families to provide confidential help with a wide variety of personal problems, issues, and concerns.

## Workplace Conduct Disciplinary Action Policy

Use of EAP services, however, does not excuse you from complying with company policies or procedures, or from achieving job requirements or expectations during or after receiving EAP assistance. Nor will participation in the EAP prevent EMVIA from taking disciplinary action when warranted.

### Confidentiality Policy

As an employee of EMVIA, you will have access to information that is confidential. This information includes but not limited regarding to our clients/customers. Any break of information will result in discipline, up to and including termination and a law action.

Confidential information also includes information concerning employees and EMVIA businesses, employee rates of pay, pay increases, level of benefits, performance, reviews, employee medical information and other similar matters are considered confidential. Personnel records are also considered confidential and are the property of EMVIA. As a current employee, you may have



access to your own file for review purposes, but are not allowed to alter any file or remove any information without the permission of the Human Resources Manager. Confidential business includes trade secrets, computer programs/passwords; any work product developed by you in the course of your employment by EMVIA shall be the sole and exclusive property of EMVIA and/or its customer.

## Workplace Conduct Workplace Harassment Policy

EMVIA's policy is to provide a work environment that is free from harassment. Therefore EMVIA WILL NOT TOLERATE HARASSMENT BASED ON AGE, RACE, GENDER, COLOR, RELIGION, NATIONAL ORIGIN, DISABILITY, MARITAL STATUS, COVERED VETERAN STATUS, SEXUAL ORIENTATION, STATUS WITH RESPECT TO PUBLIC ASSISTANCE, AND OTHER CHARACTERISTICS PROTECTED UNDER FEDERAL, STATE, OR LOCAL LAW. Such conduct is PROHIBITED in any form at the workplace, at work-related functions, or outside of work if it affects the workplace. This policy applies to all EMVIA employees, clients, customers, guests, vendors, and persons doing business with EMVIA.

### SEXUAL HARASSMENT

It is EMVIA's policy that there is no discrimination against any employee or applicant for employment on basis of sex. EMVIA WILL NOT TOLERATE SEXUAL HARASSMENT by any of its employees (including supervisors and managers), officers, directors or any other person who interact in the workplace with our employees. This includes employer sponsored social events and business related travel. Sexual harassment is a violation of EMVIA's rules of conduct and is strictly prohibited. Persons engaging in such acts are subject to sanctions and disciplinary measures, up to including immediate discharge. Sexual harassment has been defined according to federal, state laws and EMVIA guidelines as:

Unwelcome sexual advances, requests for sexual favors, and other verbal or physical conduct of a sexual nature when:

Submission to such conduct is made a term or condition, either explicitly or implicitly, of an individual's employment;

Submission to or rejection of such conduct by an individual is used as a factor in decisions affecting that individual's employment; or

Such conduct has the purpose or effect of substantially interfering with an individual's work performance or creates an intimidating, hostile, or offensive working environment.

Prohibited acts of sexual harassment can take a variety of forms ranging from subtle pressure for sexual activity to physical assault. Sexual harassment can be of a male to female nature, female to male nature, male to male nature or female to female nature.

It is not possible to identify in this policy each and every act that may constitute or contribute for sexual harassment. However, in order to promote a respectful workplace, EMVIA here identifies examples of kinds of conduct that violate this policy and that are prohibited by EMVIA.

Examples of conduct prohibited by this policy include but are not limited to:

Unwelcome sexual flirtation, advances, or propositions; Threat or suggestion of sexual relations or sexual contact that is not freely or mutually agreeable to both parties; Verbal or written comments (including e-mail) of sexual nature including graphic commentaries regarding the person's body, and/or the body of another person, comments regarding sexual behavior, unwelcome requests for behavior, sexual advances or flirtations, lewd comments or gestures, sexual innuendoes and other vocal activity such as cat calls, wolf whistles, etc; Explicit or degrading verbal comments about another individual or his/her appearance; The display of sexually suggestive pictures or objects in any workplace location including transmission or display via computer; Any sexually offensive or abusive physical conduct; The taking of or the refusal to take any personnel action based on an employee's submission to or referral of sexual overtures; Repeated requests for social engagements or interactions, where prior social invitations have been refused or when the employee has otherwise indicated such invitations are unwelcome; and Displaying cartoons or telling jokes which relate to an individual's age, race, gender, color, religion, national origin, disability, or sexual orientation.

If you believe that you are being subjected to workplace harassment, you should:

1. Tell the harasser that his or her actions are not welcome and they must stop, if you feel comfortable enough to do so.
2. Report the incident immediately to your supervisor/manager, the next level supervisor or the site Human Resources Representative or the Employee Relations Department, without fear of reprisal.
3. Report any additional incidents that may occur to one of the above resources.

Any reported incident will be investigated. Complaints and actions taken to resolve complaints will be handled as confidentially as possible, given's obligation to investigate and act upon reports of such harassment.

Retaliation of any kind against an employee who reports a suspected incident of sexual harassment is prohibited. An employee who violates this policy or retaliates against an employee in any way will be subject to disciplinary action up to and including termination.

## Workplace Conduct Drug Free Workplace Policy

We recognize alcohol and drug abuse as potential health, safety and security problems. It is expected that all employees will assist in maintaining a work environment free from the effects of alcohol, drugs or other intoxicating substances. Compliance with this substance abuse policy is made a condition of employment.

Employees are prohibited from the following when reporting for work, while on the job, on company or customer premises or surrounding areas, or in any vehicle used for company business: The unlawful use, possession, transportation, manufacture, sale or other distribution of an illegal or controlled substance or drug paraphernalia. The unauthorized use, possession, transportation, manufacture, sale or other distribution of alcohol. Being under the influence of alcohol or having a detectable amount of an illegal or controlled substance in the blood or urine ("controlled substance" means a drug or other substance as defined in applicable federal laws on drug abuse prevention).

Any employee violating these prohibitions will be subject to disciplinary action up to and including termination.

Any employee convicted under any criminal drug statute for a violation occurring while on the job, on company or customer premises, or in any vehicle used for company business must notify the company no later than 5 days after such a conviction. A conviction includes any finding of guilt or plea of no contest and/or imposition of a fine, jail sentence, or other penalty.

Drug and alcohol testing will be carried out in compliance with any applicable state and federal regulations. Any employee who refuses to submit to examination or testing will be subject to disciplinary action, including discharge at the discretion of EMVIA.

We recognize that employees suffering from alcohol or drug dependence can be treated. We encourage any employee to seek professional care and counseling prior to any violation of this policy.

## Workplace Conduct Violence-Free Workplace

It is EMVIA's policy to provide a workplace that is safe and free from all threatening and intimidating conduct. Therefore, EMVIA will NOT TOLERATE VIOLENCE OR THREATS OF VIOLENCE of any form in the workplace, at work-related functions, or outside of work if it affects the workplace. This policy applies to EMVIA's employees, clients, customers, guests, vendors, and persons doing business with EMVIA.

It will be a violation of this policy for any individual to engage in any conduct, verbal or physical, which intimidates, endangers, or creates the perception of intent to harm persons or property. Examples include but are not limited to:

Physical assaults or threats of physical assault, whether made in person or by other means (i.e., in writing, by phone, fax, or e-mail) Verbal conduct that is intimidating and has the purpose or effect of threatening the health or safety of a co-worker. Possession of firearms or any other lethal weapon on company property, in a vehicle being used on company business, in any company owned or leased parking facility, or at a work-related function. Any other conduct or acts which management believes represents an imminent or potential danger to work place safety/security.

EMVIA Inc will promptly investigate any reported occurrences or threats of violence. Violations of this policy will result in disciplinary action, up to and including termination of employees. Where such actions involve non-employees, EMVIA Inc will take appropriate action for the circumstances. Where appropriate and/or necessary EMVIA will also take whatever legal actions are available and necessary to stop the conduct and protect employees and property.

## Workplace Conduct Accident Reports/Worker Compensation

All the employees are covered under workers compensation in accordance with the law. Any accident or injury that an employee suffers on the job must be reported immediately to his or her supervisor.

In order to help prevent accidents, it is the employee's duty to report immediately to his or her supervisor any condition that the employee believes is unsafe.

## Time Away From Work Funeral Leave Policy

We have taken into consideration the personal needs that arise from the death of an immediate family member. You will be allowed leave up to three (3) days with full pay until and including the day of the

funeral. Funeral leave pay will not be granted to employees attending a funeral during periods when, for other reasons, they are not at work, such as vacation, holidays, and illness.

Immediate family is understood to include father, mother, spouse, child, sister, brother, mother-in-law, father-in-law, brother-in-law, sister-in-law, grandparents, or any relative who lives with the employee.

## Time Away From Work MATERNITY Leave Policy

EMVIA support family relations. Family and Medical Leave Act of 1993 protect our employees. If you are you having a baby or caring for a new baby; adopting a child or getting a foster child and you have worked for EMVIA for at least 12 months; and have worked at least 1,250 hours in the past;

Then you are entitled to:

Take a total of 12 weeks off work without pay; keep your health insurance during the time you are off. And get your old job back or a job with equal pay, status and benefits, when you return

## Time Away From Work Jury Duty

While it is the duty of every citizen to serve on a jury when called, EMVIA recognizes that this often means the loss of income. EMVIA pays the difference between the jury pay and regular wages for days when you are unable to report to work because of jury service.

The above statement applies provided that you:

Show your supervisor your summons to serve on a jury prior to the time that you are scheduled to serve. Furnish your supervisor with evidence of having served on a jury for the time claimed.

Jury absence will be noted on your time sheet or time card. Time spent on jury duty will not be counted as hours worked for the purpose of computing overtime pay. Regular wages are paid until jury pay is received. Jury pay is then deducted from your regular wages.

This benefit cannot be applied to any court appearance other than jury duty unless such appearance is related to your employment.

## Time Away From Work Military Leave Policy

Leave for Annual Training

Employees who are members of the U.S. Army, Navy, Air Force, Marines or Coast Guard Reserves or the National Guard may be granted leaves of absence for the purpose of participating in Reserve or National Guard training programs.

Employees shall be granted the minimum amount of leave needed to meet the minimum training requirements of their units. No employee will be required to use vacation time for military duty, but employees who do elect to schedule their vacations to coincide with military duty will receive their full regular vacation pay in addition to any pay from the military.

In recognition of the public service performed by reservists and members of the National Guard, employees shall receive the difference between their regular pay and their service pay, excluding any military subsistence allowance or other expense allowances during the training period.

## Leave for 6-month Active Reserve or National Guard Duty

Permanent employees who are members of the U.S. Army, Navy, Air Force, Marines or Coast Guard Reserves or the National Guard may be granted leaves of absence for the purpose of participating in 6-month active duty tours.

Employees will be granted leave as required to complete the tour of duty.

Employees who apply to return to work within thirty-one (31) calendar days of satisfactory completion of the six (6) month tour of active duty will be resorted to their former job or a job of similar status and pay without the loss of seniority.

Time spent in the reserves or the National Guard will be credited to all employees toward meeting length of service requirements for eligibility for retirement benefits and vacation entitlement. Employer pension contributions, however, will be suspended during military service because the employee is not in pay status and employees will not accrue vacation while in the military.

## Time Away From Work Religious Observances

Federal and state equal opportunity laws generally require employers to accommodate the religious beliefs of employees, but do not require them to provide paid leave. EMVIA respects your religious beliefs and therefore will provide one (1) day of unpaid leave to employees who, for religious reasons, must be away from the office on days of normal operation.

Beyond this, we must reconcile employees' religious obligations with the requirements of running a business and serving customers. Supervisors will authorize schedule changes and/or additional use of vacation leave or unpaid leave, only where the requested arrangement, in the supervisor's judgment, neither prevents the requesting employee from meeting the requirements of the job nor unfairly burdens other employees.

Employees who need time off for religious observance should request leave from their supervisors at least two weeks (10 working days) in advance.

## Employment: Pay Practices

EMVIA pays wages and salaries according to each employee's contract. Generally, the employee will be paid bi-weekly. When an employee gets hired, he or she will have the option of either receiving a company check or having their check amount directly deposited into a bank of their choice.

All positions are classified exempt or non-exempt. A non-exempt employee is entitled to overtime pay at a rate of one and one-half times the regular hourly rate for hours worked over forty (40) in a week. For purposes, "hours worked" does not include paid time off, such as holiday leave, vacation time, sick time or other similar days that are paid but not actually worked. Exempt employees are not entitled to overtime. Overtime may not be worked without express authorization from your supervisor.

## Employment: Probation Period

Your first ninety (90) days of employment are considered to be a probation period. Your response to training, your ability to do the job assigned your ability to work with other people and general attitude will be evaluated. You're Supervisor, Operations Manager or the Human Resources Manager, they will

be glad to answer any of your questions. During your probation period, as during your employment generally, you may be dismissed without notice at any time.

## Time Away From Work Sick Pay Policy

Being a service-oriented organization, it is crucial that you begin work at your assigned time. If you are tardy, you should report the reason to your supervisor. It is very much to your advantage to do all that you can, to have a good attendance record since regular attendance is one of the best indications of interest in your job and will be taken into account at your performance evaluation. If you are unable to report for work because of illness or for any other reason, please call your supervisor between 8:30AM-9:30AM (your local time). Explain the reason for the absence and tell him/her when you expect to return to work. If you are unable to return to work on the expected day, you should call your supervisor by 8:30AM-9:30AM (your local time) on that day to inform him/her of the status of your return. If your supervisor is unavailable, contact the Operations Manager or the Human Resources Department.

### Personal/Sick Time

Personal/Sick Time is time you elect to use for the following reasons:

- Physician and dental appointments for yourself or family members;
- Time away from the office when either you or a family member is sick;
- Time away from the office for any personal reason.

You are not required to give any specific reason for using your personal/sick time, however when you plan to use time for “personal” reasons and/or scheduled appointments, you must notify your manager of this preference and schedule the time off as in advance of the event as possible.

Full-time employees who have one (1) year of employment will have a 10 days paid sick. This time cannot be accruing for the next year and the employee needs to bring a doctor release.

Part-Time employees who have one (1) year of employment will have 5 days paid sick. This time cannot be accruing for the next year, and the employee needs to bring a doctor release.

### Abuse of Sick Leave

Regular attendance is crucial to the success of this and any other business. Paid sick leave is provided as a financial buffer for employees who are too injured or ill to work, not as additional time off for employees who are well. Employees should be prepared to furnish a doctor’s note or similar evidence of inability to work if the supervisor requests one. Abuse of sick leave is grounds for discipline, up to and including discharge.

## Time Away From Work Vacation Policy

### Policy

Regular full-time employee will begin earning three (3) days and part-time employees begin earning two (2) day vacation leave after six (6) months of employment; however, no paid vacation days will be granted for full-time employees, until the probation period of employment (90 days) has been

successfully completed. The employee will be required to take five consecutive business days of vacation each calendar year in order to meet internal control and security requirements.

#### Procedure

All employees are required to submit a written request for vacation leave at least 1 month prior to the date they wish their vacation to begin. This form should be submitted to the department supervisor/manager, who will forward it to the Human Resources Department for approval. Supervisors/managers will resolve conflicting leave requests within a department by considering factors such as:

- Departmental staffing needs
- Seniority
- Length of desired vacation
- Elapsed time since employee's last 5-day (or longer) vacation

#### Regular Full-time Employees

Regular full-time employees with more than one (1) year of employment and have been complete their H-1 are permitted three (3) weeks (15 days) paid vacation. The employee can move only one (1) week (5 days) for the next year, if he/she doesn't want to use all their vacation leave. The department manager must approve the use of leave without pay to extend a vacation.

### Time Away From Work Holidays' Observed

The Paid Holidays will be:

New Year's Day Memorial Day Christmas Day

4th of July Labor Day

Christmas Eve (employee petition approved December 2007)

Thanksgiving Day Friday after Thanksgiving

Time Away From Work Lunch

### Lunch Periods

Employees are allowed to have one (1) hour lunch break Lunch breaks will be a rest period; generally are taken between 11:30AM – 2:30PM. The schedule for meal periods should be established on the basis of work requirements in each office. Staggered meal periods may be necessary in customer service locations. Supervisors should be sure that each location is adequately staffed and that someone with authority to resolve minor problems is available at all times.

### Information & Office Security General Computer Usage Policy

#### General Usage



EMVIA requires a General Computer Usage Policy to accomplish its business objectives in a secure and timely manner. Instituting such a policy demonstrates the commitment EMVIA has to safeguard corporate information assets. That commitment must extend from every individual involved in business operations.

All data on information systems ATV is classified as company proprietary information. Any attempt to circumvent EMVIA's security procedures is strictly prohibited; any employee violating these prohibitions will be subject to disciplinary action up to and including termination. Unauthorized use, destruction, modification, and/or distribution of EMVIA's information or information systems are strictly prohibited. All EMVIA's information systems will be subject to monitoring and auditing at all times. Users acknowledge that they have no expectation of privacy with regard to their activity on EMVIA's information systems. Use of any EMVIA's information systems or dissemination of information in a manner bringing disrepute, damage, or ill- will against EMVIA is not authorized. Individual passwords assigned by EMVIA, will be kept strictly confidential. In no situation should a username and password be given to another individual or change with prior approval of management.

#### Internet Usage

Internet usage is provided to EMVIA's employees to conduct work-related business. Incidental and occasional personal use is permitted. This privilege should not be abused and must not affect a user's performance of employment related activities. Non-business Internet activity will be restricted to non-business hours.

#### E-mail Usage

E-mail accounts are provided to EMVIA's employees to conduct work-related business. While this resource is to be used primarily for business, the Company realizes that employees may occasionally use this privilege for personal matters, and therefore permits limited personal e-mail during non- business hours.

### Information & Office Security General Computer Usage Policy

All e-mail on the EMVIA information systems, including personal e-mail, is the property of the company. As such, all e-mail can and may be periodically monitored. Outgoing and incoming e-mail of an offensive, pornographic, or otherwise inappropriate nature is PROHIBITED (see Sexual Harassment and conduct guidelines). Violations of this may result in disciplinary action, up to and including termination of employment.

#### Desktop Services

EMVIA discourages and prohibits the downloading of software from the Internet because of significant risk of infecting the company systems with a virus and the unreliability of such downloaded software. All EMVIA's information systems will be subject to periodic inventory and inspection for compliance.

### General Practices Dress Code

Your pride in both yourself and as a representative of our organization is reflected in your appearance and image you create. We feel our business image is important and request that our employees



maintain standards of dress and appearance appropriate to the organization as a whole and your individual position responsibilities. Dress, grooming, personal cleanliness, and professional behavior standards contribute to the professional image we present to our customers and visitors. Therefore, while performing duties for our organization employees are expected to dress in attire appropriate to the business environment and to behave in a professional and businesslike manner at all times to best represent our business.

#### Guidelines:

Due to the nature of our business and our continuous client contact, the employees at EMVIA have followed a more traditional business attire dress policy. Our formal dress guidelines now include a more relaxed dress or “Business Appropriate” dress, which we feel is in the best interest of our employees, and our clients (please see below).

Employees may dress according to the requirements of their positions; however our beliefs regarding business appropriate dress is that business is always first. This means that employees should keep their day’s schedule in mind. We recognize that different levels of dress may be appropriate for different occasions. As a general rule, when meeting with clients, prospects, or outside visitors, traditional business attire should always be worn except where it doesn’t make good business sense.

All employees should judge their business attire for meetings and contacts outside of the office by the type of function that will be attended. Also, on occasion there may be a specific business reason to require that all employees dress in traditional business attire. In such instance employees will be communicated to in advance and will be required to dress accordingly.

Our business appearance and image is important to us; however we respect individual preference and choice in dress and appearance. We are confident that employees will use their best judgment in following our dress and attire guidelines. We ask that at all times employees make certain that their appearance is well groomed and clean and that clothing is appropriate, neat, clean, and well-fitting. While relaxed business attire is acceptable within the stated guidelines, we want to be sure our environment does not jeopardize professionalism and productivity.

Dress Code: Monday thru Thursday – will be business casual/suite. Fridays - Blue jean clothing of any color or style, however, each case should be taken to make sure the professional image is maintained in front of client by adopting suitable business attire. All employees will use close shoes (tennis shoes), for security reasons; women can use shoes like, sandals, open toed shoes (no flip flops) during the summer, if they aren’t in a project who requires close or special shoes.

Appropriate Business Attire/Appearance Includes: For men, traditional attire includes a business suit, jacket or blazer, and tie. For women, traditional attire includes a business suit, jacket or blazer with a sweater or blouse, along with a skirt or pants. Business type dresses or coordinated ensembles are also considered traditional attire for women. For men, relaxed business attire includes dress or sport shirts with collars and/or ties, polo shirts, tailored slacks, khakis/chinos, dress corduroy slacks, and business shoes including socks. For women, relaxed business attire includes dress shirts, polo shirts, blouses, sweaters, traditional split skirts, casual dresses, skorts outfits, tailored slacks, khakis/chinos, dress corduroy slacks or stirrup pants if of dress slack material, business shoes (heels, flats or other casual shoes) including socks or nylons with skirts, dresses or skorts.

Inappropriate Attire or Appearance Includes: Casual shorts, leggings, jogging or sweat suits/socks. Sweat shirts, T-shirts, tank tops, oversized shirts. Sundresses, Tank tops, Capri Pants (or pedal pushers) or other trendy wear including exceptionally short dresses/skirts or crop tops. Clothing made of fleece, flannels or spandex. Shoes without socks or nylons open toed shoes or “flip-flops”, thongs. Hosiery must be worn at all times with dresses, skirts, skorts, etc. Socks may be worn with pants but must cover ankle completely and not be of sport material. No bare legs or ankles. Any clothing item displaying an offensive comment or graphic illustration; logo clothing including sport teams, cartoon characters, etc., unless otherwise specified.

Jewelry (or other objects of personal expression, such as visible tattoos) that is distracting, large, or represents an unprofessional image as determined by such as large chains, facial jewelry such as nose rings, etc. Dirty, ragged, ungroomed, or sexually provocative, revealing, or see through clothing or appearance.

If an employee reports to work in questionable attire or appearance, a notification and/or discussion will occur with the employee to advise and counsel them regarding the inappropriateness of the attire. Depending upon the circumstance the employee may also be sent home and directed to return to work in proper attire. Any work time loss will be expected to be made up by the employee. Continued or frequent departures from these guidelines will not be permitted and employees who appear for work inappropriately dressed or groomed may be disciplined up to and including termination.

## General Practices Employment of Relatives

Members of your immediate family will be considered for employment on the basis of their qualifications. Your immediate family may not be hired, however, if it would:

Create a supervisor/subordinate relationship with a family member, Have the potential for creating an adverse impact on work performance, or create either an actual conflict of interest or the appearance of a conflict of interest.

This policy must also be considered when hiring, assigning, or promoting an employee.

For purposes of this policy, your immediate family includes: Mother, Father, Husband, Wife, Son, Daughter, Sister, Brother, Mother-in-law, Father-in-law, Sister-in-law, Brother-in-law, Son-in-law, Daughter-in-law, Stepchild, Stepparent, or Grandparents. This policy also applies to close personal relatives.

Questions should be directed to your supervisor.

## General Practices: Expense Reimbursement

Submittal of Monthly Expense Report Forms:

It is the employee's responsibility to prepare and submit a monthly expense report to receive reimbursement for business related expenses. Expense reports should be submitted on at least a monthly basis to insure proper matching of expenses with the appropriate accounting period.

For business related meals and entertainment expenses to be deductible, IRS regulations require that the business purpose, names of people entertained, and place and time of the entertainment be documented on the expense form.

All claimed expenses must have a receipt. All Monthly Expense Report Forms must be signed by the employee and approved by their supervisor before being submitted to Accounts Payable for processing.

## General Practices Inclement Weather

EMVIA is open for business unless there is a declared State of Emergency. There may be times, however, when we will delay opening. Use common sense and your best judgment, however, when traveling to work in inclement weather.

If you arrive at work after the scheduled opening time, that time is charged to you as either (1) personal/sick time, (2) vacation time, or (3) unpaid time, in that order. You should always use your discretion in getting to work. EMVIA attempts to accommodate individual situations by allowing the use of personal/sick time and vacation time in these situations.

When potentially dangerous weather develops during the day and a decision is made by management to close before 3:00PM you will be compensated as if you had worked to the end of your regularly scheduled hours for that day. If you elect to leave prior to a decision being made by EMVIA to close early, you will be required to use accrued time at the same rate as if you arrived after your scheduled start time.

## General Practices Performance Evaluations

EMVIA is committed to providing you with feedback about your performance on the job. Managers are responsible for on-going performance feedback. In addition, your manager has the responsibility to formally discuss and document your performance on a regular basis (generally on an annual basis). In some business units, an initial performance review is conducted within three to six months after an employee begins a new job.

Your performance appraisal discussion will include a review of your strengths, identify of any areas needing improvement, and goals and objectives that need to be achieved. Performance evaluations will be included for pay raise consideration annually (from the start date of employment)

## General Practices Smoke-Free-Environment

Smoking is not permitted at any time in EMVIA work areas, including company vehicles or customer or client areas.

If smoking is allowed outside of the building, smokers should be considerate of coworkers, customers, and members of the public. Help to maintain a clean entryway by depositing cigarettes in appropriate containers and staying far enough away from doors so that smoke does not blow into the building.

Employees who smoke must observe the same guidelines as non-smokers for the frequency and length of break periods.

## APPENDIXES

## Report of Jury Duty Pay

Employee Name:

Date:

Employee Location:

Employee ID#:

To: Payroll

I was out of the office on jury duty from to, or (if you did not serve on consecutive days) on these dates:

This is a copy of my jury duty pay statement. I understand that, although benefits program includes pay continuation during jury duty, the additional money I earn while performing jury duty must be paid to. I understand, therefore, that my jury duty pay—pay only, not the transportation allowance—

Check one:

- ☐ - Will be subtracted from a future paycheck

OR

- ☐ Will be endorsing and paid directly to.

Signed: \_\_\_\_\_

## Certificate of Entrance into Military Service

[To be filed with human resources department]

This is to certify that \_\_\_\_\_ who is employed as \_\_\_\_\_  
a salary rate of \$\_\_\_\_\_ in the department of \_\_\_\_\_ is entering  
military service effective \_\_\_\_\_

This position is:

- ☐ Unclassified
- ☐ Exempt
- ☐ Nonexempt

If employee is employed on a seasonal, temporary, or provisional basis, indicate:

- ☐ Seasonal
- ☐ Temporary
- ☐ Provisional

Date employment commenced \_\_\_\_\_ Date employment would have  
terminated, had such employee not entered military service as of \_\_\_\_\_

\_\_\_\_\_  
Signature

\_\_\_\_\_  
Date

## Certificate of Return from Military Service

[TO BE FILED WITH HUMAN RESOURCES DEPARTMENT]

This is to certify that \_\_\_\_\_ has requested to return from military service to his or her position of \_\_\_\_\_ in the Department of \_\_\_\_\_, at a salary rate of \$ \_\_\_\_\_.

Date of entry into service: \_\_\_\_\_

Date of discharge: \_\_\_\_\_

[Attach copy of discharge]

- ☐ This position has been filled on a substitute basis by \_\_\_\_\_.
- ☐ This position has been vacant pending return of incumbent.
- ☐ Employee had permanent status in the following job class:
  - ☐ Competitive
  - ☐ Noncompetitive
  - ☐ Labor
  - ☐ Employee was temporarily or provisionally employed.

\_\_\_\_\_  
Signature

\_\_\_\_\_  
Date

## Application for Re-employment Following Military Leave

(To be submitted no later than \_\_\_\_\_ days [depending on length of military leave] following completion of military service.)

Date: \_\_\_\_\_

Name: \_\_\_\_\_

Social Security #: \_\_\_\_\_

Applying for (position): \_\_\_\_\_

To Human Resource Department:

Please accept this application as my application to return to the position listed above as soon as possible. Attached is documentation verifying my dates of leave for \_\_\_\_\_ (division of military service) and my honorable discharge.

\_\_\_\_\_

Employee Signature

### FOR OFFICE USE ONLY

Date Received:

☐ Approved: - Date of re-employment:

☐ Denied: -

Reason for denial:

\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

\_\_\_\_\_

By:

\_\_\_\_\_

Date:



Expense Reimbursement Form

Date:

THIS FORM MAY BE USED FOR MULTIPLE TRIPS. MEAL PER DIEM RATES ARE FIXED UNLESS PRIOR RATES ARE AGREED UPON BETWEEN PAYEE AND PAYOR. PAYMENT TERMS AND EXPENSE DETAILS LISTED WILL BE DEEMED ACCEPTED PENDING ANY CONCERNS NOTIFIED TO PAYEE. WITHIN 5 BUSINESS DAYS FROM THE DATE OF RECEIPT OF THIS FORM

| Purpose of Trip & Role |             | Begin               | End  | Begin | End    |
|------------------------|-------------|---------------------|------|-------|--------|
| Dates                  |             |                     |      |       |        |
| Location               |             | DALLAS              |      |       |        |
| Payor/Vendor Name      |             | Internal            |      |       |        |
| LODGING                |             |                     |      |       | \$0.00 |
| MEALS                  | BREAKFAST   | INDICATE # OF MEALS |      |       |        |
|                        | LUNCH       |                     |      |       | 0.00   |
|                        | DINNER      |                     |      |       | 0.00   |
| CAR RENTAL             |             |                     |      |       | 0.00   |
| Fuel for rental car    |             |                     |      |       | 0.00   |
| AIR FARE               |             |                     |      |       | 0.00   |
| MILES DRIVEN           |             |                     |      |       | XXXXXX |
| RATE                   | Ref:IRS PUB | 0.00                | 0.00 | 0.00  | 0.00   |
| TAXI, TOLLS, ETC       |             |                     |      |       | 0.00   |
| PARKING                |             |                     |      |       | 0.00   |
| OTHER (COMPLETE BELOW) |             |                     |      |       | 0.00   |
| TOTAL EXPENSES         |             |                     |      |       | 0.00   |

LESS COSTS PAID IN ADVANCE 0.00

Send To

Name:

Address 1:

| OTHER EXPENSES |                                  |
|----------------|----------------------------------|
| DATE           | PLACE, CITY & STATE, INDIVIDUALS |
|                | TOTAL                            |
|                |                                  |
|                |                                  |

Signature:

TYPE IN IF SENDING ELECTRONICALLY/ OTHERWISE SIGN

TOTAL DUE

0.00

yes

If sending electronically, please indicate : "YES" that you have attached all receipts and acknowledge that this represents all expenses related to this event.

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